



MODULE 10

Accessorials, Problems & Claims

When the plan breaks: stay calm, call early, prove everything.

Detention, layover, TONU, lumpers and other accessorials; the detention clock; late loads, breakdowns, reefer problems, refused freight, accidents and weather; cargo claims under the Carmack Amendment; and the evidence that gets money paid.

39%

of stops had
detention (ATRI)

8

accessorials
explained

8

problems, first moves

~5 hours

study + practice

How to use this module

Module 9 showed Load 2 going perfectly. Real weeks don't. Receivers make trucks wait, loads cancel at the gate, highways close, trucks break, freight arrives crushed. This module teaches you to **protect the driver, the schedule and the carrier's money** when that happens.

Practice terms used in this module

Blue Line's usual asks (practice values)

Detention **2 h free, then \$50/h** · layover **\$250/day** · TONU **\$150** · extra stop **\$75** · driver assist **\$75** (only if agreed) · lumper **paid or reimbursed by broker**.

Real terms differ by broker and load. The rate con always decides (Module 9).

Study rhythm (about 5 hours)

- **Session 1 (1.5 h):** accessorial, detention clock, lumpers, TONU and layover.
- **Session 2 (1.5 h):** problems on the road, late ETA call (drill 12), breakdowns, accidents.
- **Session 3 (2 h):** claims, evidence kit, practice situations and check.

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Three rules for every problem

People first (is the driver safe?) · **call early** (brokers forgive problems, not surprises) · **write it down** (times, names, photos, instructions).



Not legal advice

Claims and accidents can involve insurers and lawyers. Your job is fast, accurate information to the carrier; the carrier and its insurer make the decisions.



10

MODULE 10 · WHEN THINGS GO WRONG

Hours of waiting are hours of pay, if you can prove them.

ATRI found drivers were detained at 39% of stops in 2023, and fleets were paid for fewer than half of the detention invoices they sent. The difference between paid and unpaid is almost always the same: times, notice and proof.

The accessorials menu

The accessorials menu

Extra pay for extra time, work or miles beyond the linehaul.



Detention

Waiting beyond free time at shipper or receiver

Practice: 2 h free, then \$50/h

Proof: In/out times, tracking, notice to broker



Layover

Truck held overnight or to the next day

Practice: \$250 per day

Proof: Broker instruction, times, reason



TONU

Truck ordered, not used: load cancelled after dispatch

Practice: \$150

Proof: Rate con, arrival proof, cancellation message



Lumper

Paid unloading help at the receiver

Actual cost, reimbursed

Proof: Lumper receipt, payment code / approval



Extra stop

Additional pickup or delivery

Practice: \$75 per stop

Proof: Rate con listing each stop



Driver assist

Driver loads, unloads or counts (only if agreed)

Practice: \$75

Proof: Written agreement before, times



Redelivery / reconsignment

New delivery address or second attempt

Miles + time, agreed in writing

Proof: Updated rate con



Scale / tarp / other

Weighing, tarping, special equipment

Actual cost or agreed fee

Proof: Receipt or agreement

Accessorials are paid only if they are on the rate con (or approved in writing) and proven. Every broker sets its own terms; the amounts here are practice values. Agree them during negotiation (Module 8), check them on the rate con (Module 9), and prove them here.

Three conditions for getting paid

1. **Agreed:** on the rate con, or approved by the broker in writing before or during the event.
2. **Proven:** times, receipts, messages, photos (evidence kit, page 14).
3. **Invoiced properly:** a separate line on the invoice, with the proof attached, sent with the POD.



Correction: "Accessorials are automatic"

Brokers pay what the rate con says and what you can prove. A driver who waited four hours without anyone telling the broker usually gets nothing.



Ask at booking

"What are your detention terms: free time, rate, and how do you want to be notified?" Then check the answer on the rate con.

The detention clock

The detention clock

Load 2 on a bad day (practice): receiver in Atlanta, appointment 1:00 PM ET, 2 hours free, then \$50 an hour.



The math

On site for the appointment 1:00 → out 4:40 = 3 h 40 min.

Minus 2 h free = **1 h 40 min**.

At \$50/h: \$83.33 (per minute) or \$100 (if billed in full hours). The rate con decides.

Arriving early doesn't start the clock. Most brokers count from the appointment time (or arrival, if later). Being late can cancel detention entirely.

Most brokers require notice before free time ends, and some need it within a set time after departure. Miss it and the claim can be refused.

Your detention routine

When	Action
Arrival	Driver checks in; photo of the check-in sheet or gate time; tracking shows arrival
15 min before free time ends	Email/message the broker: "Driver on site since 12:00 for 1 PM appt, not yet in a door. Free time ends 3 PM; please notify the receiver and approve detention after 3."
Departure	In and out times written on the BOL/POD and signed by the facility
Same day	Detention line on the invoice with times and the notice message attached



Hours of service still apply

Waiting at a dock is usually on-duty time and uses the 14-hour window (Module 4). Long detention can push a driver out of hours, which is why detention can also mean a missed next load.



Know the fine print

Some brokers pay only if the driver arrived on time, only after written notice, or only up to a daily cap. Ask once, write it down for that broker, and follow it every time.

Detention by the numbers

Detention by the numbers

American Transportation Research Institute (ATRI), 2024 study of 2023 data.

39.3%

of stops had detention in 2023
reefer: 56.2% · spot fleets: 42.5%

135M+

hours lost by for-hire trucking to detention in 2023
117–209 hours per driver per year

\$15.1B

cost to the industry
\$3.6B direct + \$11.5B lost productivity

< 50%

of detention invoices actually paid
94.5% of fleets charge detention

Safety link: ATRI found detained trucks drove 14.6% faster on average afterwards, trying to make up lost time. Detention is a safety problem, not only a money problem.

Why claims fail: no times, no notice, not on the rate con, or sent weeks later. The fix is process: log, notify, prove, invoice the same day.

The detention notice (template)

Subject: Detention notice · Load PF-20931 · Atlanta

Hi Dana, our driver Carlos arrived at 12:00 PM ET for the 1:00 PM appointment and is still waiting for a door. Free time ends at 3:00 PM ET. Please let the receiver know, and confirm detention will apply at \$50/h after 3:00 PM per the rate confirmation. Check-in photo attached. Thank you, Jawad · Blue Line Transport



If the broker says “we don’t pay detention on this one”

“Understood. The rate con lists detention after two hours at \$50. Can you point me to where it says otherwise?” If it truly isn’t there, note it for next time and add detention terms to your negotiation checklist.



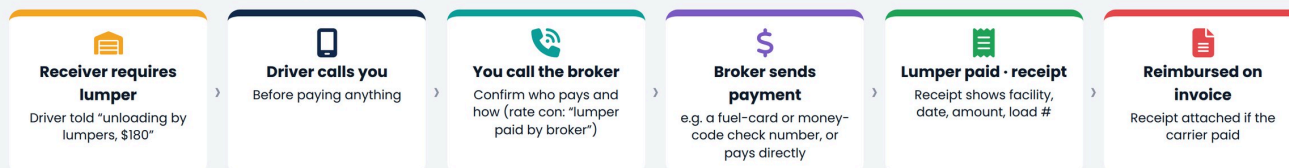
Pakistan tip

Detention often starts in your early morning shift (U.S. afternoon). Set reminders at “free time minus 15 minutes” for every live appointment on your tracker.

Lumper fees

Lumper fees: who pays and how

The usual flow when a receiver uses paid unloading crews. Amounts are practice values.



The law: when a shipper or receiver requires loading or unloading help, it must provide it or pay for it, and coercing a carrier to load or unload is unlawful (49 U.S.C. 14103). In practice, brokers usually arrange or reimburse lumper fees.

No receipt, no money. Tell drivers: never pay a lumper without a receipt, and never pay cash out of pocket unless you and the broker agreed first.

Driver script at the receiver



Carlos to the receiver

"Before I pay anything, I need to call my dispatcher. Can I get the amount and who to make it out to?" Then he calls you, and you call the broker.



The lumper receipt must show

Facility name and address · date and time · amount · load or PO number · how it was paid · signature or stamp. A handwritten note on a napkin will not be reimbursed.

Driver assist vs lumper

Situation	What it is	Rule
Lumper	Facility's paid crew unloads	Broker pays or reimburses; get a receipt
Driver assist	Driver loads/unloads or counts by hand	Only if agreed in advance and paid; driver can refuse unsafe work
No-touch	Driver stays in the truck	Normal for most full truckload freight

Three common situations

Three common situations

Practice scenarios with Truck 12. Amounts are practice values from each rate con.

TONU	Layover	Refused load
Carlos drives 90 miles empty to a shipper. At the gate: "Load cancelled." Rate con: TONU \$150. - Photo of the gate / check-in - Tracking shows arrival - Call broker: cancellation in writing - Invoice TONU with proof	Receiver can't unload today; next slot is 7 AM tomorrow. Rate con: layover \$250 per day. - Broker instruction to wait (written) - Times: arrival, told to wait, unloaded - Driver takes legal rest - Invoice layover with the messages	Receiver refuses 2 of 22 pallets: "crushed." Driver still at the dock. - Photos + exact POD note - Broker told now; written instructions - Refused pallets stay protected - Carrier informed; possible claim

The rate con from #12354 said the broker was "not liable to pay Truck Order Not Used." On a load like that, a cancellation at the gate pays nothing. That's why you ask for TONU terms during negotiation, especially with long deadhead.



TONU call

"Hi, this is Jawad with Blue Line, load PF-20931. Our driver is at the shipper and was told the load is cancelled. He drove 90 miles empty for this. Per the rate con, we'll invoice the \$150 TONU. Can you confirm the cancellation by email?"



Layover is about rest too

If the driver must wait overnight, make sure he has a legal and safe place to park. The layover payment doesn't replace the next load he may lose, so tell Mike quickly so he can decide.

Accessorial request emails: subject lines that get paid

Type	Subject line	Attach
Detention	Detention request · PF-20931 · Atlanta · 1 h 30 billable	POD with in/out times, notice email, tracking
TONU	TONU · PF-20931 · cancelled on arrival 8:10 AM CT	Rate con, check-in photo, cancellation message
Layover	Layover · PF-20931 · held overnight per your instruction	Instruction message, times
Lumper	Lumper reimbursement · PF-20931 · \$185	Receipt, approval message

Send the request the same day, then add the approved amount to the invoice (Module 9).

First moves for eight problems

Eight problems and your first moves

What to do in the first ten minutes. Details follow on the next pages.

 Running late	Know the new ETA · call broker before the appointment · ask for a new time in writing
 Breakdown	Driver safe, hazard lights, triangles · roadside service · tell broker with a repair ETA · broker decides on recovery
 Reefer temperature issue	Driver checks unit and setpoint · download temperature record · tell broker at once · don't deliver warm freight without instructions
 Load refused	Driver stays calm and documents · get the reason on the POD · broker gives written instructions (return, hold, new address)
 Accident	Safety first: 911 if injuries · protect the scene · carrier and insurer · photos · no admissions of fault
 Weather	Driver decides if it's safe · stop early rather than push · tell broker early; don't pressure the driver
 Hours running out	Stop legally · new ETA after rest · never ask a driver to drive over hours (coercion is prohibited)
 Short / damaged freight	Photos · exact note on POD · broker told before the driver leaves · keep freight safe (possible salvage)

The three rules for any problem

1. People first: is the driver safe?
2. Call early: brokers forgive problems, not surprises.
3. Write it down: times, names, photos, instructions.

Who decides? The driver decides what is safe; the carrier decides money and risk; the broker decides what happens to the freight. You connect them fast.

Never hand a load to another carrier to "save" it without the broker arranging it. That's brokering (Module 8).



Why "call early" works

A broker who hears about a delay three hours before the appointment can move the appointment, tell the receiver and keep the customer calm. A broker who finds out from the receiver at 1:05 PM loses trust in your carrier, and may fine it.

The problem log (one line per event)

Time (zone)	What happened	Who was told	Decision / next step
10:05 AM ET	I-24 closure; truck stopped 2 h	Broker (call + email), Mike	New ETA 2:50 PM ET; broker asking receiver
10:40 AM ET	Receiver moved appointment to 3:00 PM	Driver, Mike	Confirmed in writing; tracker updated

Practice rows. The log goes in the load folder (Module 9) and is your evidence if fines, detention or claims come up later.

The late ETA call

Running late: numbers first, then the call

An honest ETA with a buffer beats an optimistic one that slips again.

Work out the real ETA

Miles left	190 mi
÷ realistic average speed	50 mph
= driving time	3 h 48 min
+ traffic / fuel buffer	30 min
+ does he have the hours? (Module 4)	yes, 6 h left

Leaving 10:30 AM ET → ETA

2:50 PM ET

Practice: Carlos lost two hours to a closed highway and restarted late. Appointment 1:00 PM ET.

Call first (drill 12): "Hi, this is Jawad with Blue Line, load PF-20931. Our driver was held by a highway closure on I-24 and will not make the 1 PM appointment. Realistic ETA is 2:50 PM Eastern. Can you ask the receiver for a later slot today? I'll send the update in writing now."

Then write: "PF-20931: driver delayed by I-24 closure (screenshot attached). New ETA 2:50 PM ET. Requesting a new appointment today. Tracking active."

Timing: as soon as you know, and always **before** the appointment time. A late call after the appointment turns a delay into a service failure, and can bring late fines.

Drill 12: say it out loud

Read the call-first script above aloud three times. Then change the facts: **flat tyre at mile 42, repair 90 minutes**, and give a new ETA with the same structure: **load • what happened • new ETA • request • written follow-up**.



Never make up a reason

If the driver overslept or left late, say "the driver is running behind" and give an honest ETA. Brokers check tracking; invented traffic destroys trust.



Update again if it slips

If the new ETA changes by more than about 30 minutes, call again. One accurate update beats three hopeful ones.

Quick ETA table (at a realistic 50 mph average)

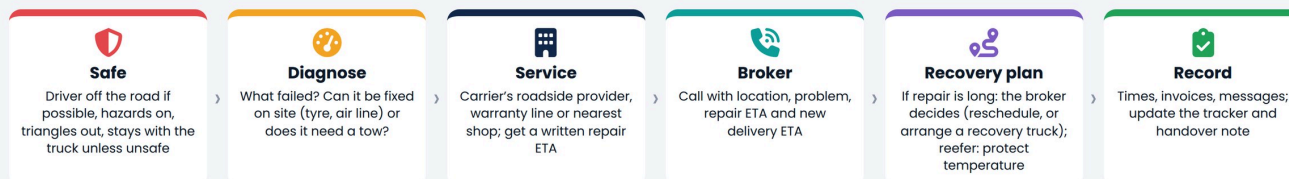
Miles left	50	100	150	200	250	300	400	500
Driving time	1:00	2:00	3:00	4:00	5:00	6:00	8:00	10:00

Add fuel, traffic and check-in time, then check the driver's hours (Module 4). Above about 500 miles, a 10-hour break usually falls in between.

When the truck or the reefer fails

Breakdown: six steps

Keep the driver safe, keep the broker informed, and let the right person decide on the freight.



Your breakdown kit (ask the carrier now, not at 2 AM): roadside assistance number, warranty or dealer line, preferred shops, towing coverage, payment method for repairs, and who approves spending.

Out of service? If an inspector places the truck out of service, it cannot move until the defect is repaired. Tell the broker immediately and plan around the repair.



Reefer problem checklist

Unit running? Setpoint matches the BOL?
 Continuous or cycle mode as required? Fuel level?
 Alarms? Download the temperature record. Tell the broker **before** the freight warms, and follow written instructions (Module 2).



Recovery is the broker's decision

If Truck 12 can't be repaired in time, the broker decides whether to wait or send a recovery truck. Your carrier must not hand the load to another carrier on its own: that's brokering (Module 8).



Evidence for repairs

Keep the repair order, tow receipt and times. If the broker agrees to reschedule rather than cancel, get the new appointment in writing.

Safety events

If there's an accident

You are not at the scene. Your job is calm coordination and accurate information.

1

People first

Driver safe? Call 911 if anyone is hurt or the road is blocked.

2

Secure the scene

Hazards, triangles, stay at the scene; don't move the truck unless told or unsafe.

3

Carrier + insurer

Tell the carrier at once; the carrier notifies its insurer.

4

Evidence

Photos of vehicles, road, cargo, documents; names and plates; police report number.

5

Broker

Load status, freight condition, next steps. Facts only.

6

Rules

If it meets the federal accident definition, post-accident rules (such as drug and alcohol testing) may apply. The carrier handles them.

FMCSA definition (49 CFR 390.5): an accident involves a fatality, an injury treated away from the scene, or a vehicle towed away because of disabling damage.

What you never say: "It was our fault," "We'll pay for it," or guesses about speed or hours. Facts only; the carrier and insurer handle liability.

Look after the driver. After an accident a driver may be shaken. Be calm, clear and kind; the load can wait.

Weather and hours

The driver decides whether it is safe to drive. FMCSA's **adverse driving conditions** exception can allow up to 2 extra hours of driving (and extend the 14-hour window by up to 2 hours) when conditions such as snow, fog or unusual traffic weren't known at dispatch. It is for finishing safely, not for pushing through a storm.



Coercion is prohibited

Carriers, shippers, receivers and brokers may not pressure a driver to break hours-of-service or other safety rules (49 CFR 390.6, Module 4). Never say "just push through."



The weather call to the broker

"Load PF-20931: heavy snow on I-75 north of Atlanta. The driver has stopped at a safe location. New ETA tomorrow 8 AM Eastern, weather permitting. I'll update you by 6 AM."

Cargo claims

Cargo claims: the timeline

Federal minimums and claim-handling rules. Contracts can give more time, not less.



Carmack Amendment (49 U.S.C. 14706): the carrier is liable for actual loss or injury to the freight it transports. A carrier may not give claimants less than **9 months** to file a claim or less than **2 years** to sue after a written denial.

A POD note is not a claim. A claim is a written demand with facts, liability and an amount. The shipper, broker or their insurer files it; the carrier and its cargo insurer respond.

Your role: collect evidence, tell the carrier the same day, never admit fault or promise payment, keep damaged freight safe until someone decides on salvage.

How claims reach the carrier

Step	Who
Damage found	Receiver notes it on the POD; driver photographs
Claim filed	Shipper or its insurer, usually through the broker
Carrier response	Carrier, with its cargo insurer
Salvage	Damaged freight sold or disposed of to reduce the loss (49 CFR 370.11)



Payment offsets

Some brokers hold or deduct freight payment while a claim is open, depending on the broker-carrier agreement. Tell Mike, read the agreement, and respond with evidence. Don't ignore the claim hoping it goes away.



Protect the carrier's insurance

Tell the carrier the same day so it can notify its cargo insurer on time. Late notice can create problems with coverage.

The evidence kit

The evidence kit

What proves each accessorail or claim. Without it, the money usually isn't paid.

🕒 Detention ✓ Tracking / ELD arrival ✓ In and out times on BOL or POD ✓ Notice sent to broker (time) ✓ Broker approval	📄 Lumper ✓ Receipt with facility, date, amount ✓ Payment code or approval ✓ Load # on the receipt	🚫 TONU ✓ Rate con with TONU terms ✓ Arrival proof (tracking, photo) ✓ Cancellation message with time
🌙 Layover ✓ Broker's instruction to wait ✓ Times and reason ✓ Rate con or written approval	📷 Damage / shortage ✓ Photos: freight, packaging, seal, trailer ✓ Exact POD notation ✓ BOL with count and seal ✓ Loading photos if any	❄️ Reefer temp ✓ Setpoint on BOL ✓ Unit download / temperature record ✓ Pulp temperatures if taken ✓ Precool proof (Module 2)

Evidence is collected at the moment, not later. Build the habit into check calls: "Send me the in-time photo," "Photograph the seal," "Get the lumper receipt before you leave."

Damage photo checklist for drivers

1. Wide shot of the trailer interior before unloading, if possible.
2. Close-ups of each damaged item and its label.
3. The seal (intact or broken) and the seal number.
4. The POD notation, readable.
5. Anything that shows cause: load bars, straps, shifting, wet floor.



A notation is not a claim

Under 49 CFR 370.3, a note on a delivery receipt doesn't count as a claim by itself. A claim is a written demand identifying the shipment, asserting liability and stating an amount. Notes and photos are the evidence for that claim.



Securement matters

Your M2 photos of load bars and blocked cargo show what prevents most shifting damage. Ask the driver to secure partial or light loads, and photograph it.

Six situations

For each: what do you do first, who do you tell, what evidence do you collect, and what do you say? Answers at the back.

Situation 1 Waiting at the shipper

Truck 12 arrives 7:40 AM CT for an 8:00 AM appointment. At 9:45 AM Carlos is still not in a door. Rate con: 2 h free, then \$50/h, notice required before free time ends.

Write: your first three actions and the exact words to the broker.

Situation 2 Lumper at the receiver

Receiver in Atlanta says unloading is by lumpers, \$185, card or money code only. Rate con: "lumper paid by broker with receipt."

Write: your first three actions and the exact words to the broker.

Situation 3 Cancelled at the gate

Carlos drives 95 miles empty to Rockford, IL. Shipper: "We shipped it with another carrier this morning." Rate con: TONU \$150.

Write: your first three actions and the exact words to the broker.

Situation 4 Breakdown with a reefer

A reefer load (practice) of produce set at 34°F. The truck loses an air line 180 miles from delivery. Repair ETA 3 hours; the reefer unit is running.

Write: your first three actions and the exact words to the broker.

Situation 5 Short and damaged

Receiver counts 21 pallets, not 22, and marks one pallet "wet, damaged." The BOL shows 22 pallets, seal 4471023 intact, SLC written.

Write: your first three actions and the exact words to the broker.

Situation 6 Snow and hours

Heavy snow ahead. Carlos has 2 hours of driving left and the appointment is in 3 hours. The broker texts: "Customer needs it today, can he push?"

Write: your first three actions and the exact words to the broker.

Detention math and the accessororial invoice

7 • Detention calculations

Terms for all three: **2 hours free from the appointment time (or arrival, if later), then \$50 per hour, billed in full 15-minute blocks (rounded down)**. Detention is void if the driver arrives after the appointment.

#	Appointment	Arrived	Out	Billable time	Amount
a	8:00 AM	7:40 AM	12:05 PM		
b	1:00 PM	12:00 PM	4:40 PM		
c	6:00 AM	6:20 AM	11:30 AM		
d	FCFS 8 AM–4 PM	9:00 AM	1:30 PM		

For d (first come, first served), assume free time starts at arrival.

8 • Build the invoice

Load 2 on a bad day: linehaul **\$1,750**; detention from 7b; the carrier paid a **\$185** lumpers with its own card (broker approved, receipt attached). Write the invoice lines and the total.

Line	Amount	Proof attached
Line haul, all-in		
Detention		
Lumper reimbursement		
Total		



9 • Write the claim response note

Situation 5 becomes a claim: the shipper claims \$1,400 for the missing and damaged pallets. Write a short, factual note from Jawad to Mike: what happened, what evidence you have (BOL, seal, SLC, photos), and what Mike should do next.



Drill 12 variations

Give the late-ETA call for: (a) flat tyre, 90-minute repair; (b) receiver moved the appointment; (c) the driver needs his 10-hour break before delivery.

Module 10 check

1. Define detention, layover, TONU and lumper.
2. When does the detention clock usually start? Why doesn't arriving early count?
3. Name three things you need to get detention paid.
4. What does 49 U.S.C. 14103 say about loading and unloading help?
5. What must happen before a driver pays a lumper?
6. Give your first three actions when a truck is running late.
7. After a breakdown, who decides what happens to the freight, and why can't your carrier hand it to another truck on its own?
8. What evidence protects the carrier in a reefer temperature dispute?
9. What is an "accident" under 49 CFR 390.5, and what should you never say after one?
10. What is the difference between a POD notation and a claim?
11. Under the Carmack Amendment, what are the minimum periods to file a claim and to sue?
12. Under 49 CFR 370, how quickly must a carrier acknowledge and decide a claim?

Skills self-check

Skill	Can do	Need practice
Explain each accessorial and what proves it	☐	☐
Run the detention routine: log, notify, prove, invoice	☐	☐
Handle a lumper request without out-of-pocket surprises	☐	☐
Give an honest late-ETA call before the appointment (drill 12)	☐	☐
Coordinate a breakdown or reefer problem safely	☐	☐
Respond calmly and factually after an accident	☐	☐
Collect evidence for a cargo claim	☐	☐

Answers: situations and math

- S1** Free time runs 8:00–10:00 AM CT (arrived early, clock starts at the appointment). Send the detention notice now, before 10:00, with the check-in time. Ask Carlos to get in/out times on the BOL.
- S2** Carlos pays nothing yet. Call the broker: “Lumper \$185 at the receiver; rate con says broker pays. How will you pay it?” Get a money code or direct payment; receipt with load #.
- S3** Photo of the gate/check-in, tracking arrival. Call the broker: cancellation in writing; invoice TONU \$150 with proof. Tell Mike; start searching for a reload near Rockford.
- S4** Driver safe; roadside service. Call the broker: location, 3 h repair, reefer running at 34°F, new ETA. Temperature record downloaded. Broker decides on waiting or recovery.
- S5** Photos, exact POD note (21 received, 1 wet/damaged), seal intact and SLC on BOL. Call the broker before Carlos leaves; tell Mike the same day. Evidence supports that loading/counting was the shipper’s.
- S6** Safety first: no pushing. “The driver will stop at a safe place; with the snow and his hours he can’t deliver today. New ETA tomorrow 8 AM.” Tell Mike. Coercion is prohibited.
- 7a** Clock 8:00 → out 12:05 = 4 h 05 min – 2 h = 2 h 05 → 8 full blocks = 2 h → **\$100**.
- 7b** 1:00 → 4:40 = 3 h 40 – 2 h = 1 h 40 → 6 full blocks = 1 h 30 → **\$75**.
- 7c** Arrived after the appointment: detention void → **\$0** (unless the broker agrees otherwise).
- 7d** 9:00 → 1:30 = 4 h 30 – 2 h = 2 h 30 → **\$125**.
- 8** Line haul \$1,750.00 (rate con) · detention \$75.00 (times on POD + notice email) · lumper \$185.00 (receipt + broker approval) · **total \$2,010.00**.
- 9** Example: “Mike, the shipper claims \$1,400 on PF-20931. Facts: BOL 22 pallets, seal 4471023 intact at delivery, SLC written at pickup, receiver counted 21 and noted 1 wet. Photos and POD attached. Please notify your cargo insurer and reply to the broker in writing; I’ll send the full file.”

Answers: module check

- 1** Detention: paid waiting after free time.
Layover: held overnight or a day. TONU: truck ordered, not used (cancelled after dispatch).
Lumper: paid unloading crew.
- 2** Usually at the appointment time (or arrival, if later). Arriving early is the carrier's choice, not the facility's delay.
- 3** Terms on the rate con, times proven (tracking, BOL in/out), notice to the broker when required; then invoice with proof.
- 4** A shipper or receiver that requires loading/unloading help must provide it or pay for it, and coercing a carrier to load or unload is unlawful.
- 5** Driver calls you; you confirm with the broker who pays and how; payment method agreed; receipt obtained.
- 6** Work out an honest ETA with hours, call the broker before the appointment, confirm in writing and ask for a new time.
- 7** The broker (with its customer). Handing the load to another carrier without the broker arranging it is brokering.
- 8** Setpoint on the BOL, unit download/temperature record, pulp temperatures, precool proof, times and messages.
- 9** A fatality, an injury treated away from the scene, or a vehicle towed for disabling damage. Never admit fault, promise payment or guess.
- 10** A notation records what was seen at delivery; a claim is a written demand identifying the shipment, asserting liability and stating an amount (49 CFR 370.3).
- 11** At least 9 months to file a claim; at least 2 years to sue after written denial (49 U.S.C. 14706).
- 12** Acknowledge within 30 days; pay, decline or offer within 120 days, with written status every 60 days if not resolved (49 CFR 370.5, 370.9).

Glossary

Accessorial — Extra charge beyond the linehaul.

Adverse driving conditions — HOS exception adding up to 2 h when unexpected conditions arise.

Carmack Amendment — 49 U.S.C. 14706: carrier liability for cargo loss or damage.

Claim — Written demand with shipment, liability and amount.

Detention — Paid waiting after free time.

Driver assist — Driver helps load or unload, if agreed and paid.

Free time — Waiting allowed before detention starts (often 2 h).

Layover — Truck held overnight or to the next day.

Lumper — Paid unloading crew at a facility.

Money code — Payment code issued so a driver can pay a fee.

Notice — Message telling the broker free time is ending.

Offset — Broker holding payment against a claim.

Out of service — Vehicle or driver barred from moving until fixed.

Recovery — Moving freight after a breakdown, arranged by the broker.

Salvage — Selling damaged freight to reduce a loss.

TONU — Truck ordered, not used.

Sources

Source	What it supports	Where
U.S. Code	49 U.S.C. 14706 Carmack Amendment: liability; 9-month claim and 2-year suit minimums	law.cornell.edu
U.S. Code	49 U.S.C. 14103 Loading and unloading: shipper/receiver provide or pay; coercion unlawful	law.cornell.edu
eCFR	49 CFR 370: claim contents, 30-day acknowledgment, 120-day disposition, salvage	ecfr.gov
eCFR	49 CFR 390.5 accident definition; 390.6 coercion prohibited	ecfr.gov
FMCSA	Hours of service summary, including the adverse driving conditions exception	fmcsa.dot.gov
ATRI	Detention research (Sept 2024, 2023 data): 39.3% of stops, 135M hours, \$15.1B cost, <50% of invoices paid, 14.6% faster driving	truckingresearch.org
User-supplied	OMNITECH manual: rate con #12354 (no-TONU clause); detention, driver and reefer photos	your files



Practice values

Accessorial amounts, the Load 2 “bad day”, situations and claim amounts are fictional practice values. Rules and statistics are from the sources above (checked September 2026).